

24STCV30026 24STCV30026

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-21

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Case Number: 24STCV30026 Hearing Date: August 21, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Glenda Gonzalez

;

Plaintiffs,

vs.

Hospice Source LLC

, et al.,

Defendants.

Case No.:

24STCV30026

Hearing Date:

August 21, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion
to Compel Responses

MOVING PARTY: Plaintiff Glenda Gonzalez

RESPONDING
PARTY: No response

Motion to Compel
Responses

The court considered the moving papers
filed in connection with this motion. No opposition was filed.

DISCUSSION

Plaintiff Glenda
Gonzalez ("Plaintiff") moves the court for an order compelling defendant
Transition Capital Partners, LLC ("Defendant") to respond to form
interrogatories, special interrogatories, requests for production, and requests
for admissions, and awarding sanctions for Plaintiff and against Defendant in
the amount of \$987.25.

First, the Code
of Civil Procedure does not authorize a motion to compel responses to requests
for admissions. The proper motion where a party fails to respond to requests
for admissions is a motion for an order that the truth of matters specified in
the requests be deemed admitted, pursuant to Code of Civil Procedure section
2033.280, subdivision (b).

Second, the court
finds that Plaintiff's motion is an improper omnibus motion which combines what

should have been filed as three separate motions to compel responses to discovery requests and a motion to deem the truth of matters stated in requests for admission.

Combining

discovery motions into one motion allows the moving party to avoid paying the required filing fees for each motion. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (Duran v. St. Luke's Hospital (2003) 114 Cal.App.4th 457, 460.) Plaintiffs combined four separate motions into a single motion and paid a single filing fee for what should have been four separate motions.

In addition,

combining multiple motions into one motion is not in furtherance of judicial efficiency and economy, and circumvents the Court Reservation System which has been implemented to limit the number and type of motions that can be noticed for hearing each day.

The court

therefore exercises its discretion to deny Plaintiff's motion without prejudice to filing separate motions to compel responses or a motion for an order that the truth of matters specified in requests for admission be deemed admitted which comply with the court's fee schedule and Court Reservation System.

The court denies

Plaintiff's request for sanctions.

ORDER

The court DENIES

plaintiff Glenda Gonzalez's motion to compel discovery responses.

The court orders plaintiff

Glenda Gonzalez to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 21, 2026

Robert B. Broadbelt III

Judge of the Superior Court